

Sri Rameshwar Sahu vs Smti Snehalata Chameli (Sahu) on 25 November, 2021

Author: Suman Shyam

Bench: Suman Shyam

Page No

GAHC010287432018

THE GAUHATI HIGH COURT
(HIGH COURT OF ASSAM, NAGALAND, MIZORAM AND ARUNACHAL PRADESH)

Case No. : Mat.App./7/2019

SRI RAMESHWAR SAHU
S/O LATE KRISHNA PD SAHU, R/O VILL. GOMIRI GAON, UNDER DEMOW
POLICE STATION IN THE DIST. OF SIVASAGAR, ASSAM.

VERSUS

SMTI SNEHALATA CHAMELI (SAHU)
D/O LATE SHHIVANATH SAHU, W/O SRI RAMESWHAR SAHU, R/O
BETBARI NO. 2, KONWAR GAON, MOUZA BETBARI, UNDER SIVASAGAR
POLICE STATION IN THE DIST. OF SIVASAGAR, ASSAM.

Advocate for the Petitioner : MR. P KATAKEY

Advocate for the Respondent : MR A. Hamid

BEFORE
THE HON'BLE MR. JUSTICE SUMAN SHYAM
THE HON'BLE MR. JUSTICE ARUN DEV CHOUDHURY

Date of hearing : 26/11/2021.
Date of judgement : 26/11/2021

JUDGEMENT AND ORDER (ORAL)

Suman Shyam, J

1. Heard Mr. P. Katakey, learned counsel for the appellant. We have also heard Mr. A. Page No.# 2/5 Hamid, learned counsel for the respondent.

2. This appeal has been preferred by the appellant/petitioner (husband) against the judgement and order dated 10/10/2018 passed by the learned District Judge, Sivasagar, Assam, in connection with Title Suit (M) No. 85/2016, granting a decree of divorce on the prayer of the appellant while awarding a sum of Rs. 7 lakhs to the respondent (wife) as permanent alimony. Neither party is aggrieved by the dissolution of their marriage by the decree of divorce. However, the appellant's grievance is solely pertaining to the quantum of permanent alimony.

3. The appellant and the respondent had got married on 07/03/1991 by following the Hindu rites and customs. After their marriage, both the parties had lived together for some time. However, within a few months of marriage, there was quarrel between the couple and the wife had allegedly refused to co-habit with the appellant. As such, the appellant as petitioner, had approached the learned Court below by filing a petition under Section 13(1)(i-

a) and (i-b) of the Hindu Marriage Act, 1955, seeking a decree for dissolution of their marriage on the ground of cruelty and desertion which was granted by the learned Court below.

In view of the fact that the decree of divorce is not under challenge before us, we do not deem it necessary to go into the excruciating details as regards the allegations and counter allegation made by the parties in the divorce petition.

4. By the impugned judgement and order dated 10/10/2018, as mentioned herein above, the divorce petition was allowed. The respondent (wife) had claimed a sum of Rs. 10 lakhs as permanent alimony, which was partially allowed by the learned trial Court by awarding a sum of Rs. 7 lakhs. The quantum of permanent alimony was decided by the Page No.# 3/5 learned trial Court by framing issue no. 3. Therefore, the finding recorded as regards issue no. 3 is reproduced herein below :-

"13. Issue No. 3: This Issue is related to reliefs to granting of permanent alimony to wife. So far fixing the amount of permanent Alimony is concerned, admittedly the petitioner/husband is working as Hindi teacher in a Government school. Against the claim of the Op side that petitioner is getting a salary of Rs. 35000/- per month, the petitioner did not file any document to contradict the same or even disclosed his exact salary for which he is the best person to do so and the burden is on him u/s 106 Evidence Act. During his cross examination the husband has admitted that he has not submitted his salary statement. However he denied having any Holler and cultivable land. From the record, it appears that presently the petitioner is paying Rs. 2000/- as monthly maintenance u/s 125 Cr.P.C. Petitioner is also paying Rs. 3000/- as directed by this court u/s 24 of Hindu Marriage Act during pendency of this proceeding. Considering the fact that as the petitioner-husband is serving as teacher in a Government school and as there is nothing on record to show that he has any other

liability except to maintain himself, I am of the opinion that if an amount of Rs. 7,00,000/- (Rupees Seven Lacs) (being 20 times of his monthly salary) is granted towards permanent alimony it will be just and proper for the O.P.-wife to maintain herself by putting the said amount in systematic investment for earning Rs. 6000 - Rs. 7000/- per month towards interest and she can maintain herself with minimum standard. Considering above, I fix the permanent alimony amount at Rs. 7,00,000/- (Rupees Seven Lakhs) payable by the petitioner husband to the OP/Wife."

5. By referring to the impugned judgement and order, Mr. Katakey has argued that when the impugned order was passed, the gross salary of his client was around Rs. 35,000/- and he was also required to pay substantial amount as loan repayment installments for the house building loan availed by the appellant. Mr. Katakey has also argued that the learned trial Court had passed the impugned judgement awarding the sum of Rs. 7 lakhs as permanent alimony without considering the aforesaid aspect of the matter and by ignoring the current liability of the appellant, which had resulted in to serious prejudice being caused to the interest of his client.

6. Controverting the above submission, Mr. Hamid has argued that the respondent is not employed anywhere and she is in need of regular expenses so as to continue with her Page No.# 4/5 medical treatment due to the various ailments suffered by her. According to Mr. Hamid, the permanent alimony awarded by the learned trial Court is just and reasonable and, therefore, the same does not call for any interference by this Court.

7. We have considered the submissions advanced by learned counsel for the both parties and have also gone through the materials available on record. At the very outset, it deserves to be mentioned herein that pursuant to the impugned judgement and order dated 10/10/2018, the appellant has already paid a sum of Rs. 3 lakhs to the respondent as part payment of permanent alimony, the receipt of which has been duly acknowledged by the respondent's counsel. However, the balance amount of Rs. 4 lakhs still remains unpaid.

8. It is the admitted position of fact that the respondent (wife) has not preferred any appeal/cross objection seeking enhancement of permanent alimony awarded by the learned trial Court.

9. We have perused the additional affidavit filed by the respondent bringing on record his recent salary slip, which goes to show that he is drawing a gross salary of Rs. 51,725/- per month and the net amount of salary credited to his bank account is Rs. 43,317/-. It also transpires from record that the appellant is presently working as Hindi Teacher in a Government M.E. School and he has about 3 years of service left. It is evident from the materials brought on record by the appellant that he is required to pay an installment of Rs. 11,400/- per month against house building loan and the said fact has not been disputed by the respondent's counsel. Therefore, it is evident that out of the sum of Rs. 43,317/- received by the appellant as net monthly salary, a sum of Rs. 11,400/- is being deducted every month, in which event, the amount left at hand of the appellant Rs. 31,917.00. It is from the said amount that the appellant would have to not only pay the permanent alimony but would also Page No.# 5/5 have to maintain himself.

10. We have already mentioned that the appellant has less than 3 years service left, within which period he has to not only re-pay his loan but has also to make arrangement for his retired life. Therefore, taking note of the overall facts and circumstances of the case and also the fact that the respondent does not have any children to take care of, we are of the view that ends of justice would be met if a sum of Rs. 6,00,000/- (Rupees six lakhs) in total, is directed to be paid by the appellant to the respondent as permanent alimony.

11. Ordered accordingly.

12. Since the appellant has already paid Rs. 3 lakhs as part payment of the permanent alimony, we now direct him to pay the balance sum of Rs. 3 lakhs to the respondent within a period of 3 (three) months from today, if necessary, in two installments. It is, however, made clear that if the payment of the entire balance amount of Rs. 3 lakhs is not completed by the appellant on or before 28/02/2022, the un-paid amount would carry interest @ 9% per annum with effect from 28/02/2022 till realization.

13. The impugned judgement and order dated 10-10-2018 stands modified to the extent indicated above.

The appeal stands disposed of accordingly.

Send back the LCR.

JUDGE

JUDGE

Sukha

Comparing Assistant